

The complaint

Mr N complains AXA Insurance UK Plc declined a storm damage claim against his buildings insurance policy unfairly.

What happened

Mr N owns a flat within a block of flats. He's responsible for his flat and 25% of common areas. From 31 December 2022 he had a buildings insurance policy with AXA. Prior to that, he had a buildings insurance policy with an insurer I'll call 'F'.

In January 2023 Mr N made a claim against his policy with F initially for subsidence and then for storm damage. F didn't accept a claim. Mr N was dissatisfied with F's claim decision(s) so he asked our Service for an independent review.

An Ombudsman issued a final decision not upholding Mr N's complaint against F. This was because, in brief, the Ombudsman wasn't persuaded there was subsidence damage, and he found the damage was most likely gradual rather than sudden storm damage.

Mr N also made a claim against AXA for storm damage. AXA declined the claim on the basis the damage claimed for fell under his policy with F, and F had considered and declined that claim. Dissatisfied, Mr N referred the complaint against AXA to our Service.

The Investigator didn't recommend the complaint should be upheld because, in brief, she didn't find the damage Mr N had claimed for was the result of an event during Mr N's time on cover with AXA. Mr N didn't agree so the complaint has been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

My colleague considered the damage Mr N is claiming for in his complaint against F. I will include his key reasoning below:

- *"The policy covers damage caused by storm. Whilst the word 'storm' isn't defined in the policy, the term [F] has relied on means storm damage is only covered by the policy if it happens suddenly. It's not covered if it happens gradually over time.*
- *It's not in doubt there were storm conditions at various times in 2022 – the question is whether any of those conditions suddenly damaged the wall head gutter and cornice. [F] said the damage had been caused gradually and/or amounted to wear and tear, whereas Mr N said the damage had been caused by one or more storms.*
- *In my view, the most persuasive evidence about the cause of the damage is D's report. D is a chartered structural engineer and a member of a number of*

relevant professional bodies. So their professional opinion carries a great deal of weight.

- *Having read D's report, I think they identified storm damage of a gradual nature. D thought storms dating back to 2021 had contributed to the damage and described the "cumulative effects of damage from successive storms" in 2022. They also said "storms progressively loosened the bond between masonry units and allowed water to penetrate and further accelerate deterioration". And they noted it was unknown "to what extent one, more or all of [the storms] might have triggered the [damage]".*
- *In these circumstances, I'm not satisfied it's been shown there was sudden storm damage. It seems more likely the damage was caused gradually over time, as a result of successive storms. I agree with Mr N that means the damage doesn't amount to wear and tear – but [F] also said the damage was gradual and I'm satisfied that's likely to have been the case based on what D said.*
- *Gradual damage isn't covered under any part of the policy. So I consider it was reasonable for [F] to decline the claim for damage to the wall head gutter and cornice under all parts of the policy."*

In this complaint, Mr N argues the damage to his property could have happened due to a storm in January 2023. In his complaint against F he argued the damage was the result of a storm(s) in 2022. In another complaint against AXA about a claim against the accidental damage section of the policy (which Mr N later withdrew) he said: "...I'm hoping you will consider a new investigation for Storm damage resulting from the Storm stated in Nov 22 which led to the catastrophic collapse of the building weeks later in Jan 23..." and "...the storm in Nov 22 was directly responsible for the damage which occurred in Jan 23".

As is clear from my colleague's final decision, from D's report (which I've read) and from Mr N's previous comments, the damage he is claiming for was the result of events which occurred before his AXA policy came into effect. Mr N has suggested he didn't know he had cause to claim until January 2023. However, Mr N's knowledge doesn't have a bearing as AXA isn't required to respond to claims about events which happened before it was on risk. It follows that, while I sympathise with the difficult position Mr N is in, I find it was fair and reasonable for AXA to decline his storm damage claim.

My final decision

I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr N to accept or reject my decision before 20 February 2026.

James Langford
Ombudsman